

25STCV34109 25STCV34109

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C08%2F07%2F2026

Source SHA-256: a0568238952b3ed1390e9b0805bf1aa4d22b6e519bc831a8c1394d8293a5f22c

Case Number: 25STCV34109 Hearing Date: August 7, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

LK LAW

FIRM, P.C.,

vs.

ARMEN

HAKOBYAN, et al.

Case No.:

25STCV34109

Hearing Date: August 7, 2026

Cross-Defendants

LK Law Firm, P.C.'s and Lusine Khachatrian's demurrer to Cross-Complainant Armen

Hakobyan's and Narine Simonyan's Cross-Complaint is sustained as to the 5th

cause of action with 20 days leave to amend.

Cross-Defendants LK Law Firm, P.C. (“L.K. Law”) and Lusine Khachatryan [erroneously sued as Lusine Khatchatryan] (“Khachatryan”) (collectively, “Cross-Defendants”) demur to Cross-Complainant Armen Hakobyan’s (“Hakobyan”) and Narine Simonyan’s (“Simonyan”) (collectively, “Cross-Complainants”) Cross-Complaint (“XC”) as to the 5th cause of action. (Notice of Demurrer, pg. 2.)

Request for Judicial Notice

Cross-Defendants’ 4/1/26 request for judicial notice of the operative complaint in this action is denied because the Court does not need to take judicial notice of filings on the instant docket.

Background

Cross-Complainants filed their operative XC on January 26, 2026, against Cross-Defendants, alleging nine causes of action: (1) intentional misrepresentation; (2) negligent misrepresentation; (3) breach of fiduciary duty; (4) unjust enrichment; (5) violation of Business & Professions Code §17200 et seq.; (6) conversion; (7) constructive fraud; (8) rescission for fraud; and (9) fraudulent inducement.[1]

Cross-Defendants filed the instant demurrer on April 1, 2026. Cross-Complainants filed their opposition on July 27, 2026. As of the date of this hearing no reply has been filed.

Meet and Confer

Before filing a demurrer, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Cross-Defendants’ counsel declares the parties engaged in two meet and confer calls. (See Decl. of Caplan ¶5.) The Court notes that the dates of the meet and confer calls should be included in the declaration for completeness. Nevertheless, Cross-Defendants’ counsel’s declaration is sufficient under C.C.P. §430.41.

Accordingly, the Court will consider Cross-Defendants' demurrer.

Summary of Demurrer

Cross-Defendants demur to the 5th cause of action on the basis it fails to state a cause of action.

(Notice Demurrer, pg. 3; C.C.P. §430.10(e).)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Violation of Business & Professions Code §17200 (5th COA)

The UCL prohibits

"unlawful, unfair or fraudulent" business acts or practices. (Bus. & Prof. Code §17200 et seq.) By proscribing "any unlawful" business act or

practice, the UCL "borrows" rules set out in other laws and makes violations of those rules independently actionable. (Zhang

v. Superior Court (2013) 57 Cal.4th 364, 370.) A "violation of another law is a predicate for stating a cause of action under the UCL's unlawful prong." (Berryman v. Merit Property Management, Inc. (2007) 152 Cal.App.4th 1544, 1554.)

"A fraudulent

business practice is one that is likely to deceive members of the public." (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 252; see also Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235 [stating under the UCL's fraudulent prong, the fraudulent practice must be likely to deceive members of the public generally,

not just the individual plaintiff]; Shaeffer v. Califa Farms, LLC (2020) 44 Cal.App.5th 1125, 1139 ["By focusing on whether 'members of the public' are likely to be deceived, the Unfair Competition Law views the challenged ad or promotional practice through the eyes of the 'reasonable consumer'—that is, the 'ordinary consumer acting reasonably under the circumstances'—unless the advertisement or practice is 'aimed at a particularly susceptible audience.'"].)

Plaintiffs fail to sufficiently allege a cause of action based on the fraud prong of a UCL claim. Plaintiffs incorporate by reference the 1st and 2nd causes of action for intentional and negligent misrepresentation, respectively, with the requisite specificity. However, these causes of action fails to allege that Cross-Defendants made false representations to anyone except the Cross-Complainants, nor does it assert that any business practice of Cross-Defendants is likely to deceive members of the general public.

Accordingly, Cross-Defendants' demurrer to Cross-Complainants' 5th cause of action is sustained with 20 days leave to amend.

Conclusion

Cross-Defendants' demurrer to the 5th cause of action is sustained with 20 days leave to amend.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Cross-Defendants only demur to the 5th cause of action and do not demur to the 1st, 2nd, 3rd, 4th, 6th, 7th, 8th, of 9th causes of action.